ELIZABETH MASVIMBO (NEE MUTEMA)
versus
NATASHA MASVIMBO (NEE MARUFU)

HIGH COURT OF ZIMBABWE
TSANGA J
HARARE; 21, 26 & 29 January & 12 March 2026

Matrimonial Trial

C Daka, for Plaintiff
T Pfende & V Tokwe, for Defendant

TSANGA J

This is an action for adultery damages. The plaintiff, Elizabeth Masvimbo, seeks damages against the defendant, Natasha Masvimbo, arising from an alleged adulterous relationship between the defendant and the plaintiff's husband, Martin Masvimbo. The plaintiff claims damages in the sum of US$15 000.00 for loss of consortium, being loss of the normal incidents of marriage including love, companionship, sexual intimacy and household services. She further claims US$15 000.00 for contumelia, being the injury to her dignity, honour and feelings occasioned by the alleged adultery.

The defendant denies the allegation of adultery in its entirety. Her defence is that the plaintiff is mistaken as to the nature of her relationship with Martin Masvimbo. She avers that Martin Masvimbo is in fact her half-brother, sharing the same father, and that no sexual or marital relationship exists or could exist between them.

The plaintiff's case

The plaintiff testified that she married Martin Masvimbo in the year 2000. Two children were born of the marriage, both now adults. She described the marriage as close and affectionate. They were, in her words, like best friends. Her husband was largely home-centred, open with her, and a good provider. They attended family gatherings together and travelled together as a family.

According to the plaintiff, the marriage took a dramatic turn in 2023 when the defendant "came into the picture." Her husband's behaviour changed markedly. He began

coming home very late at night, often after 11 pm, and sometimes not at all. He stopped taking holidays with the family and ceased attending family gatherings, leaving the plaintiff to attend alone. He also stopped paying school fees for the children who were still in school.

The plaintiff testified to a series of occurrences which, in her view, pointed to an extramarital relationship. While cleaning her husband's motor vehicle she found evidence of meals shared in the car, notwithstanding that her husband did not ordinarily eat take-away food. On one occasion, she found two stem glasses and a bottle of Amarula. She also came across receipts for expensive gifts, including a laptop and a Samsung mobile phone. When she confronted her husband about these items, he gave no explanation.

In April 2023, her husband failed to come home at all one night, prompting the plaintiff to wait for him until about 4 am. Upon his eventual return and after being pressed for an explanation, he told her that his ancestors were calling upon him to take a second wife, though he did not name the woman concerned. Shortly thereafter, he stopped returning home even to bathe, sometimes staying away for a week at a time and returning with different clothes. These absences lengthened to periods of up to three weeks.

When he was at home, he would receive repeated telephone calls from the same number. The plaintiff established that the number belonged to one Munashe Marufu, and she overheard her husband telling the caller that he would be "coming there soon." The plaintiff further testified that when their daughter gave birth on 14 June 2023, her husband was not even present and was unavailable.

The plaintiff stated that at one point, she received a telephone call from her sister-in-law, Martin's sister who resides in Gweru. She was informed that Martin had said he was coming to Gweru and would be bringing someone with him. After that visit, the sister-in-law confirmed that Martin had indeed arrived and had introduced a woman as his new wife. She sent pictures of the woman to the plaintiff. When Martin returned home, the plaintiff confronted him about the pictures, and he instructed her to delete them. She had not. The plaintiff told the court that she was unable to produce the photographs in evidence as her phone was later taken by her husband and never returned. However, in court the plaintiff identified the woman in the pictures as the present defendant.

By June 2023, Martin Masvimbo had completely stopped coming home.

The plaintiff further testified that the defendant thereafter assumed the surname Masvimbo. She herself was removed from her husband's medical aid scheme, and the defendant was listed as his wife. As a result, the plaintiff was left without medical aid and

could not afford private cover. Family support from her husband's side ceased. A motor vehicle which her husband had bought earlier that year became a financial burden she could no longer afford to service. She was forced to single-handedly pay for her son's apprenticeship fees in Kwekwe.

The emotional impact on the plaintiff was profound. She testified that she became depressed, could not eat or sleep, and lost weight. She stopped attending church. Members of the community would ask about her husband's whereabouts, particularly because they had previously run a gas-selling business together and were usually seen as a couple.

Under cross-examination, the plaintiff was asked why she only instituted this action in 2025 if she had discovered the relationship in 2023. She explained that initially she believed the marriage could still be salvaged, as her husband continued to come and go. It was only when he sought to sell the matrimonial home that she realised the marriage had irretrievably broken down. She then instituted divorce proceedings and subsequently issued summons for adultery damages, feeling that she had nothing left to lose.

She conceded that she had not personally witnessed the defendant and her husband engaging in a sexual act. However, she stated that her husband's brother had confirmed the relationship to her, though he was unwilling to testify against his own brother.

The plaintiff called one other witness, Rhoda Chivasa, her neighbour. Ms Chivasa testified that she had known the plaintiff and Martin Masvimbo since 2008 when they moved into the neighbourhood. She interacted with the family daily, fetching water from their house. In December 2023 she encountered Martin Masvimbo at a supermarket pushing a trolley in the company of a woman whom he introduced to her as his wife. In court, she identified that woman as the defendant. At the time, she knew Martin Masvimbo to be married to the plaintiff.

The defendant's case

The defendant testified that she is 29 years old. She stated that Martin Masvimbo is her brother, sharing the same father but having different mothers. She first learnt of this relationship in 2015, when she went to their rural home. The circumstances were unclear but according to her, it was Martin's mother who informed her of the relationship. Traditional compensation (chiredzwa) was paid and beer was brewed to formally acknowledge her place in the family. She maintained that it was therefore impossible and untrue that she could be in a sexual relationship with Martin Masvimbo.

She further testified that in 2019 she was customarily married to another man, and that they parted ways in 2024. As regards her change of surname to Masvimbo, she explained that this occurred after she became aware of her biological family. The surname she had previously used, "Marufu" belonged to her grandmother and, according to her, was associated with misfortune in her life.

She had no explanation for why she was listed as Martin Masvimbo's wife on his medical aid. Concerning property allegedly purchased jointly, she stated that her "brother" Martin, assisted her in securing a loan through his banking connections as she lacked sufficient funds on her own.

No documentary or independent evidence was produced to substantiate the alleged blood relationship between her and Martin Masvimbo. DNA test results showing their relatedness would have been proof of their relatedness. It was not availed.

She testified that she has three children: a set of twins born in 2016 and a third child born in 2023. She claimed all the children as her own and stated that none of their birth certificates reflect the identity of the father.

Under cross-examination, she admitted that despite allegedly knowing since 2015 that Martin Masvimbo was her brother, she had never been formally introduced to the plaintiff as her husband's sister. Her explanation was that she travelled frequently.

The defendant called two witnesses.

The first was Modester Masvimbo, Martin's mother, aged 78. She testified that she knows the plaintiff as her daughter-in-law and the defendant as her late husband's daughter. She stated that her husband, who died in 2001, had informed her that he had sired a child out of wedlock. The defendant came in 2015 to be formally introduced, and traditional ceremonies were conducted to welcome her into the family. She regarded the defendant as her daughter and described any suggestion of a sexual relationship between the defendant and Martin as obscene and improper.

She further stated that she was present when defendant's former husband paid part of the lobola for the defendant. However, when the court later sought clarification on this she indicated that the defendant had merely brought a boyfriend on one occasion, whom she had not seen again. She denied knowledge of Martin Masvimbo having taken a second wife or having a child outside his marriage to the plaintiff, stating that she resides in Gutu and was unaware of such matters.

The final witness was Martin Masvimbo himself. He confirmed his marriage to the plaintiff and asserted that the defendant is his sister, whom he came to know in 2015. He stated that his late father had disclosed the existence of a child born out of wedlock. He denied the allegation of adultery and stated that his marriage to the plaintiff had broken down because he feared for his life. He alleged that the plaintiff visited traditional healers and he had voice recordings in which she chanted that he should fall ill. He also described an incident where he experienced itching and facial swelling, which he said reinforced his belief that his life was under threat. He stated that he left the matrimonial home after enduring the situation for the sake of the children.

Regarding the defendant being listed as his wife on his medical aid, he claimed this was done by office staff without his knowledge, possibly to reduce subscription costs. He denied introducing the defendant as his wife to his sister in Gweru and suggested that the neighbour's evidence was fabricated or coached, as their daughters were friends.

Under cross-examination, he conceded that there was no documentary evidence before the court proving the alleged sibling relationship. He explained that the defendant's mother was not called as a witness because she had not been summoned. He also admitted that the plaintiff had never been informed of the defendant's existence, stating only that it had been a family secret that his father had sired a child out of wedlock.

Legal Analysis & Factual Analysis

Whilst the delict of adultery may be on the wane in some jurisdictions such as neighbouring South Africa, it remains relevant in this jurisdiction. In *Annamaria Dlamini (Nee Dube Aka Dladla)* v *Aquilina Pamberi - Mandeya* HH315/19 Justice Chitakunye (as he then was) highlighted that the Zimbabwean community still considers adultery as deserving of punishment to the paramour. As he articulated:

> "It is clear to me that the marriage institution in Zimbabwe is still held in sacrosanct and the need to provide some measure of protection is still considered necessary despite the high level of infidelity by those in such marriages; this being done for the sake of the innocent spouse for the loss of *consortium* and *contumelia*. If such protection is removed the innocent party would otherwise be tempted to take the law into his or her own hands as there would be no legal recourse to atone for the said loss of *consortium* and *contumelia*."

See also remarks by MWAYERA J in *Njodzi* v *Matione* HH 37/16 on the recognition of the claim for adultery in this jurisdiction as compared to South Africa.

The issue is whether sex outside marriage occurred between the defendant and the plaintiff's husband. The onus rests on the plaintiff to prove, on a balance of probabilities, that the defendant committed adultery with her husband and that such adultery resulted in the

loss of consortium and *contumelia* complained of. It is trite that adultery is rarely proved by direct evidence. The court is entitled to draw inferences from conduct, surrounding circumstances, cohabitation and public representation, provided that the inference of an adulterous relationship is the most probable inference to be drawn from the facts. In assessing the evidence before it, the court must determine the credibility of the witnesses and the inherent probabilities of the competing versions.

The plaintiff was a generally consistent and forthright witness. Her evidence was detailed and internally coherent. She did not exaggerate her case and readily conceded that she had not personally witnessed a sexual act between the defendant and her husband. This concession enhances rather than detracts from her credibility. Her explanation for the delay in instituting these proceedings was reasonable and accords with the lived reality of many marriages where a spouse clings to hope of reconciliation long after clear warning signs emerge.

Her account of her husband's sudden and sustained withdrawal from the matrimonial home, the secrecy surrounding his movements, the unexplained gifts, and the complete cessation of financial and emotional support was not seriously shaken under cross-examination. Importantly, these changes were not isolated incidents but formed a clear pattern beginning in early 2023 and culminating in his permanent departure from the home.

The plaintiff's evidence was corroborated in material respects by the independent testimony of her neighbour, Rhoda Chivasa. Ms Chivasa had no discernible interest in the outcome of the matter. Her evidence was simple and direct. She placed Martin Masvimbo in the company of the defendant in a public setting and testified that he introduced the defendant to her as his wife. This was not hearsay but a direct interaction. At the time, she knew Martin Masvimbo to be married to the plaintiff. There was no persuasive basis laid for the suggestion that she had been coached. The mere fact that her child and the plaintiff's child were friends does not, without more, render her evidence unreliable.

The court also attaches weight to the evidence concerning the defendant's assumption of the surname Masvimbo and her listing as Martin Masvimbo wife on his medical aid. These are not trivial matters. They constitute outward, formal representations to third parties that she was his spouse. No satisfactory explanation was offered for these developments. The explanation that medical aid officials unilaterally and erroneously listed the defendant as a spouse, without the knowledge or consent of Martin Masvimbo, is inherently improbable and strains credulity.

Turning to the defence case, the central plank of the defendant's version is that she and Martin Masvimbo are half-siblings. This allegation, if true, would indeed render the plaintiff's claim unsustainable. However, this assertion was not supported by any objective or documentary evidence. No birth records, affidavits from elders, or proof of the alleged traditional ceremonies were produced. The court was asked to accept the existence of a blood relationship of the utmost significance purely on the say-so of the defendant, Martin Masvimbo, and his mother.

Modester Masvimbo's evidence was not without difficulty. She claimed ignorance of matters which, on the probabilities, she would have been expected to know, including the existence of a second wife or a child outside the plaintiff's marriage, despite being closely related to her son. She also initially stated that she was present at the defendant's lobola ceremony, only to later clarify that the defendant had merely brought a boyfriend once and that she had not seen him again. This inconsistency undermines the reliability of her testimony on key issues.

The defendant herself was an unsatisfactory witness in material respects. Her explanation for never having been introduced to the plaintiff as her husband's sister, despite allegedly knowing of the relationship since 2015, was unconvincing. Frequent travel does not reasonably explain the complete absence of any formal or informal introduction over several years, particularly in a family context where such relationships are ordinarily disclosed. Her failure to explain how she came to be publicly presented as Martin Masvimbo's wife further weakens her credibility.

Martin Masvimbo's evidence must be approached with caution. He is an interested party whose testimony was clearly aimed at exculpating both himself and the defendant. His allegation that the plaintiff posed a threat to his life through alleged use of traditional healers was serious, yet wholly unsubstantiated. No recordings were produced. No independent evidence was led to support this claim. Notably, he did not report these alleged threats to any authority. The court finds this aspect of his evidence to be a post-hoc rationalisation for his abrupt departure from the matrimonial home.

Equally implausible is his claim that the defendant was listed as his wife on medical aid without his knowledge. Medical aid beneficiary changes ordinarily require affirmative action and documentation by the principal member. The explanation offered does not accord with ordinary administrative practice.

The court is also struck by the secrecy surrounding the alleged sibling relationship. Martin Masvimbo admitted under cross-examination that his wife was never informed that the defendant was his sister, describing it as a "family secret." This explanation is inconsistent with the defendant's assertion that she had been formally welcomed into the family in 2015 through traditional rites. If the relationship had indeed been openly acknowledged within the family, there would have been no rational basis to conceal it from the plaintiff for close to a decade.

When the totality of the evidence is considered, the version advanced by the defence is riddled with improbabilities and unexplained inconsistencies. By contrast, the plaintiff's version is coherent, corroborated in material respects, and accords with ordinary human conduct. The court is satisfied that the inference to be drawn from the proven facts is that the defendant and Martin Masvimbo were engaged in an adulterous relationship and held themselves out publicly as husband and wife.

The plaintiff has therefore discharged the onus of proving adultery on a balance of probabilities. It follows that the plaintiff was deprived of the consortium of her husband and suffered humiliation, indignity and emotional distress as a result of the defendant's conduct. Liability for adultery damages is accordingly established.

Quantum of damages

Having found that the defendant committed adultery with the plaintiff's husband, the court must now determine an appropriate award of damages. Damages in adultery actions are compensatory and not punitive. They are intended to solatium the injured spouse for the loss of consortium and the *contumelia* suffered, taking into account all the circumstances of the case.

In assessing quantum, the court is guided by established considerations, including the duration and stability of the marriage, the degree of intimacy and mutual affection prior to the adultery, the manner in which the adultery was committed, whether it was accompanied by public humiliation, the extent to which the marriage was disrupted or destroyed, and the emotional impact on the innocent spouse. The conduct of both the defendant and the errant spouse is also relevant.

Loss of consortium

The plaintiff was married to Martin Masvimbo for over twenty years. This was not a short or fragile union. The evidence shows that prior to 2023 the marriage was stable, affectionate and functional. The plaintiff and her husband shared a close bond, raised children

together, ran a business together and were publicly known as a couple. The loss suffered by the plaintiff is therefore substantial. The court accepts that the plaintiff suffered a real and substantial loss of consortium. The marriage which endured for over two decades was on the evidence stable and affectionate prior to the adulterous relationship. The plaintiff lost companionship, emotional support, sexual intimacy and the practical benefits of married life. The defendant's conduct directly contributed to the plaintiff's husband's withdrawal from the matrimonial home and the eventual collapse of the marriage.

The adultery was not fleeting or clandestine. It manifested in prolonged absences from the matrimonial home, total withdrawal of emotional, physical and financial support, and culminated in the husband's complete desertion of the plaintiff. The plaintiff lost companionship, love, sexual intimacy and the practical benefits of married life. She was left to shoulder family responsibilities alone, including financial obligations previously borne by her husband.

The court also takes into account that the plaintiff was not a contributing cause to the breakdown of the marriage. No credible evidence was placed before the court to show that the marriage had irretrievably broken down before the adulterous relationship commenced. The alleged threats to the defendant's husband's life were unsubstantiated and rejected by the court.

On quantum of damages MUSHORE J in *Corah Mahachi* v *Pamela Farai Zimba* HH 315/17 analysed a range of cases on quantum of damages in US dollar values noting as follows:

> "In the *Raitewa* case, in 2011, the applicant claimed a total of US$20 000-00 (US10 000-00 for each head) and the award given was a total of US$6 000-00 (US 4 500-00 for contumelia and US$1 500-00 for loss of consortium)
> In *Chipo Jhamba* v *Aleta Mungwisi* HB 01/10 the court awarded US$500-00 from a claim of US$50 000-00.
> In 2010 in *John Gore* v *Simon Chiware* HH 274-14 the court awarded the plaintiff a US$1 200-00 from US$20 000-00 which had been initially been claimed.
> In 2011 in *Martha Muhwati* v *Yeukai Purity Nyama* HH-137/11, the court granted an award of US$5 000-00 in total having noted that adultery damages awards ranged between US800-00 and US$5 000-00."

MUSHORE J awarded US$4000.00 in damages being US$4000.00 for *contumelia* and US$ 4000.00 for loss of consortium.

In these circumstances, the plaintiff's claim of US$15 000.00 for loss of consortium is somewhat excessive. The sum of US$ 4000.00 is more commensurate with the length of the marriage, the degree of loss suffered, and prevailing awards in comparable matters. The court

therefore finds that an award in the sum of another **US$4000.00** fairly compensates the plaintiff for the loss of consortium.

Contumelia

Contumelia refers to the insult, humiliation and injury to dignity suffered by the innocent spouse as a result of the adultery. In this matter, the contumelia was aggravated by several factors.

Firstly, the defendant and the plaintiff's husband held themselves out publicly as husband and wife. The defendant was introduced as a wife to third parties, assumed the plaintiff's marital surname, and was listed as the husband's spouse on his medical aid. These acts were calculated to, and did, strip the plaintiff of her status as a wife.

Secondly, the plaintiff was subjected to public embarrassment within her community and church. She was, repeatedly asked about her husband's whereabouts in circumstances where they had previously been publicly visible as a couple. The humiliation was ongoing and not a once-off occurrence.

Thirdly, the defendant's conduct displayed a marked disregard for the plaintiff's dignity. The complete replacement of the plaintiff on medical aid, coupled with the abrupt cessation of spousal support, exacerbated her vulnerability and sense of worthlessness. The emotional toll on the plaintiff, including depression, loss of appetite, insomnia and social withdrawal, was significant and unchallenged.

The court is mindful that damages for contumelia must be tempered so as not to become punitive. However, in light of the aggravated manner in which the adultery was conducted and the sustained humiliation suffered by the plaintiff, a meaningful award is justified.

The plaintiff again claimed US$15 000.00 under this head. The court considers this figure to be on the upper end but not wholly unjustified. Doing the best it can in the circumstances, the court awards the sum of **US$4000.00** for contumelia.

This award, in the view of the court, strikes a fair balance between adequately compensating the plaintiff for her proven loss and maintaining proportionality in line with established principles governing adultery damages.

Disposition

Having heard the evidence of both parties and carefully considered the facts and circumstances of this case, it is hereby ordered as follows:

1. The Defendant is found to have committed adultery with the Plaintiff's husband, Martin Masvimbo.
2. The Plaintiff is awarded the sum of US$4 000.00 (Four Thousand United States Dollars) for loss of consortium.
3. The Plaintiff is further awarded the sum of US$4 000.00 (Four Thousand United States Dollars) for *contumelia* (loss of dignity, honour and humiliation).
4. The Defendant is hereby ordered to pay the total sum of US$8 000.00 (Eight Thousand United States Dollars) to the Plaintiff, in respect of the damages described in paragraph 2 and 3 above.
5. Costs of suit to be borne by the Defendant.

TSANGA J…….

Mupindu Legal Practitioners, Plaintiff's Legal Practitioners
Takawira Law Chambers, Defendant's Legal Practitioners